
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 160 (H.931). An act relating to miscellaneous changes in education law

Subjects: Education; moratorium on approved independent schools; therapeutic approved independent schools; Interstate Compact for Education; Agency of Education background checks

This act makes several miscellaneous changes to Vermont education law. First, it creates an exception to the moratorium on approval of initial applications for new approved independent schools for currently approved therapeutic approved independent schools undergoing a change of ownership that would require a new initial application to be submitted to the State Board of Education. This act requires such applications to be processed according to applicable State and federal law as long as the school will remain a therapeutic approved independent school after the change in ownership is complete.

Second, this act codifies Vermont's membership in the Interstate Compact for Education.

Third, this act requires the Agency of Education to request criminal record information for any person the Agency is prepared to recommend for any full-time, part-time, temporary, or contract position with the Agency if such person will have or has the potential to have unsupervised contact with students.

Fourth, this act makes several changes to the Intercollegiate Sexual Harm Prevention Council, including changing membership composition, eliminating several Council duties, eliminating the assistance of the Network Against Domestic and Sexual Violence and replacing it with the administrative support of the Council's co-chairs, eliminating the Council's annual reporting requirement to the General Assembly, requiring co-chairs instead of one chair, requiring meeting twice per year instead of quarterly, and eliminating member entitlement to per diem compensation and reimbursement of expenses.

Fifth, this act makes several changes to the Harassment, Hazing, and Bullying Prevention Advisory Council, including adding several new members, providing more specificity to the Council's duties, requiring an annual report to the General Assembly, and adding member entitlement to per diem compensation and reimbursement for not more than 12 meetings per year. This act includes an appropriation of \$21,000.00 from the General Fund to the Agency of Education in fiscal year 2027 for member per diem compensation and reimbursement of expenses.

Finally, this act amends the definition of "cost-saving measure" in the energy performance contracting statute to include additions.

Effective Date: July 1, 2026